

Line 4

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)

Line 5

Case Name: *Swaminathan Nandakumar, et al. v. David Plagens, et al.*

Case No.: 22CV397444

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Cross-Complainants David Plagens and Lisa Plagens (“Cross-Complainants” or “Plagens Cross-Complainants” or “Plagens”) move to enforce and clarify the Court’s May 22, 2026 Protective Order and related discovery Order regarding Cross-Defendants Swaminathan Nandakumar and Rekha Nandakumar (“Cross-Defendants” or “Nandakumar Cross-Defendants” or “Nandakumars”) and for sanctions. Notice of Motion (the “Motion”) at 1:19-27. (filed: July 13, 2026).

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Facts

After reviewing all the moving and opposition papers, including their supporting declarations and their voluminous exhibits, and the record, the Court finds the following facts.

On May 13, 2026, the Court granted the Plagens Cross-Complainants’ motions to compel and ordered the Nandakumar Cross-Defendants to produce all responsive, non-privileged documents at or before their depositions scheduled for May 26 and May 29, 2026.

On May 19, 2026, the Nandakumar Cross-Defendants advised the Plagens Cross-Complainants that the security camera footage to be produced under the May 13, 2026 order was password-protected with special duplication requirements. So the Nandakumar Cross-Defendants offered two alternatives for production:

(1) a neutral e-discovery vendor would process the footage and produce digital copies to both sides within six to ten business days, with a short extension of the production deadline and a protective order in place; or

(2) the Nandakumars would immediately make the hardware itself available for the Plagens to download and process at their own expense, with pickup that week and return by June 1, 2026, again subject to a protective order.

Decl. of Austin L. Houvener in Support of Opposition (“Houvener Decl.”) at ¶ 3 & Ex. A